

STATE OF NEW YORK

3379--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. RAGA, ALVAREZ -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, in relation to requiring the New York city department of transportation to provide notice to schools of certain construction projects

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 19-101.5 to read as follows:

3 § 19-101.5 Notification of schools of construction work. a. No later
4 than fourteen days prior to the commencement of any construction project
5 to be undertaken by the department within three hundred feet of any
6 building operated by the city school district of the city of New York or
7 a nonpublic school or charter school located within the city of New York
8 where such building is used for student instruction, the department
9 shall provide written notice to such school district or such nonpublic
10 school or charter school. Such written notice shall include a
11 description of location of such construction. No written notice shall
12 be required pursuant to this section when the commencement of a
13 construction project is in response to an emergency.

14 b. (i) The term "construction" as used in this section means the
15 erection, building, or substantial acquisition, alteration, recon-
16 struction, improvement, extension or modification, including public
17 utility improvements, of a highway, sidewalk or appurtenance thereof.

18 (ii) The term "emergency" as used in this section means a situation
19 involving danger to life, safety or property which requires immediate
20 action, is essential to efficient operation or the adequate provision of
21 service by a municipality, school district, nonpublic school or the
22 state, and is a direct consequence of an accident or other unforeseen
23 circumstance.

24 § 2. This act shall take effect on the ninetieth day after it shall
25 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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